

VCU308266 Briseno, Guadalupe vs. Perfection Pet Foods, LLC

County: tulare

Division: Civil Law and Motion

Department: 1

Hearing date: 2026-08-20

Motion: Motion for Approval of PAGA Only Settlement

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Re: Briseno, Guadalupe vs. Perfection Pet Foods, LLC

Case No.: VCU308266

Date: August 20, 2026

Time: 8:30 A.M.

Dept. 1-The Honorable David C. Mathias

Motion: Motion for Approval of PAGA Only Settlement

Tentative Ruling: To grant the motion; to set a final compliance hearing as to distribution of the net settlement fund to the LWDA and Aggrieved Employees on March 18, 2027; D1; 8:30 am. CMC is off calendar.

Background Facts

Plaintiffs Birseno and Delayo's operative amended complaint brings a single cause of action under PAGA against Defendants Perfection Pet Foods, LLC, Post Brands Pet Care, LLC, Volt Information Sciences, Inc., and Volt Management and seeks approval of the settlement of this matter.

1. Sufficiency of Amount of Settlement (Proposed Net Distribution: \$40,582.99)

The gross settlement amount is \$300,000.

Plaintiffs estimates approximately 382 aggrieved employees, defined as all persons currently or formerly employed by Defendants either directly or through a staffing agency as hourly-paid, non-exempt employees who worked for a Perfection Pet Foods, LLC facility in California from August 30, 2022 to December 9, 2024.

Plaintiffs' PAGA claims allege violations of (1) Failure to Keep Accurate Records (Cal. Labor Code § 1174); (2) Failure to Produce Records (Cal. Labor Code §§ 226(b)-(c), 432, and 1198.5); (3) Failure to Provide Meal Periods (Cal. Lab. Code §§ 226.7, 512); (4) Failure to Authorize and Permit Rest Periods (Cal. Lab. Code § 226.7); (5) Failure to Provide Suitable

Resting Facilities (IWC Wage Order § 13(B), Cal. Lab. Code § 1198); (6) Failure to Pay Minimum and Overtime Wages (Cal. Lab. Code §§ 218.5, 510, 511, 558, 558.1, 1194, 1197, 1198, and 1199); (7) Failure to Pay Statutory Wages (Cal. Lab. Code § 223); (8) Failure to Pay Wages Due (Cal. Labor Code § 216); (9) Failure to Reimburse Business Expenses (Cal. Lab. Code § 2800 and 2802); (10) Failure to Provide Accurate Itemized Wage Statements (Cal. Lab. Code § 226); (11) Unlawful Deductions (Cal. Labor Code §§ 221-222); (12) Failure to Pay for Reporting Time (IWC Wage Order § 5, Cal. Lab. Code § 1198); (13) Violation of California Day of Rest Law (Cal. Lab. Code §§ 551, 552); (14) Failure to Provide Suitable Seating (IWC Wage Order §§ 14(A-B), Cal. Lab. Code §§ 1198, 1199); (15) Sick Leave and Supplemental Sick Leave Violations (Cal. Lab. Code §§ 233, 234, and 245-248.6); (16) Failure to Pay Vested Vacation Time (Cal. Labor Code § 227.3); (17) Failure to Timely Pay Final Wages at Termination (Cal. Lab. Code §§ 201-203); (18) Failure to Pay Final Wages at Place of Discharge (Cal. Lab. Code § 208); and (19) Unlawful Agreements/Unlawful Inquiries into Criminal History (Cal. Lab. Code §§ 432.5, 432.7).

In deciding whether to grant approval of the proposed PAGA settlement, the primary issues to be decided is whether the settlement is fair, adequate, and reasonable. (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 77.) “Because many of the factors used to evaluate class action settlements bear on a settlement’s fairness—including the strength of the plaintiff’s case, the risk, the stage of the proceeding, the complexity and likely duration of further litigation, and the settlement amount—these factors can be useful in evaluating the fairness of a PAGA settlement.” (*Id.*) “Given PAGA’s purpose to protect the public interest, we also agree with the LWDA and federal district courts that have found it appropriate to review a PAGA settlement to ascertain whether a settlement is fair in view of PAGA’s purposes and policies.” (*Id.* citing *O’Connor v. Uber Technologies, Inc.* (N.D. Cal. 2016) 201 F.Supp.3d 1110, 1133.)

Plaintiff’s counsel provides estimates of the maximum PAGA penalty liability of \$10,486,200 (22,991 pay periods x \$100 per violation x 4 claims at 100% violation rate + 22,991 pay periods x \$100 per violation x 1 claim at 56% violation rate) (Declaration of Serb ¶17.)

The motion adequately sets forth the relative strength and value of the PAGA claim as well as the risks, expense, complexity and likely duration of further litigation.

As noted above, the parties reached gross settlement figure of \$300,000 after mediation.

Plaintiffs’ deductions from the gross settlement of \$300,000 are proposed as follows:

Proposed Attorney Fees (35%):

\$105,000.00

Proposed Attorney Costs (incurred):

\$11,668.06

Proposed Payment to Plaintiff Briseno

\$10,000.00

Proposed Payment to Plaintiff Delayo

\$5,000.00

Proposed Administrative Costs

\$6,000.00

Proposed Net Settlement Fund

\$162,331.94

Proposed LWDA Share (75% of Net Settlement Fund)

\$121,748.95

Proposed Aggrieved Employee Share (25% of Net Settlement Fund):

\$40,582.99

The Court finds the gross settlement amount fair, adequate, and reasonable under Moniz as noted above.

2. Notice

There is no notice period. The proposed notice adequately informs the aggrieved employees of adequate details regarding the case and distribution of their portion of the net settlement fund.

3. Enhancement Awards

An enhancement payment of \$10,000 is proposed as to Plaintiff Briseno and \$5,000 as to Plaintiff Delayo.

The court has, in past cases, approved enhancement awards of \$5,000 routinely. While Plaintiff Briseno has provided a declaration detailing the involvement in this case from inception to settlement, the Court does not find that these efforts should result in an enhancement award greater than the typical amount awarded by this Court. The enhancement awards of \$5,000 are approved.

4. Attorneys' Fees and Costs

Attorneys' fees of 35% of the gross settlement fund of \$300,000 or \$105,000 and costs of \$11,668.06 are sought by counsel.

Counsel has utilized the percentage of common fund methodology as well as provided adequate lodestar information to evaluate the reasonableness of the fee request.

Here, Counsel indicates that the firm has spent 166.9 hours at rates ranging from \$850 to \$650 per hour, proving a base lodestar of \$130,740. (Declaration of Serb – Ex. 6.)

Counsel has also provided the current costs expended in amounts of \$11,668.06. (Declaration of Serb ¶48.)

5. Claims Administrator

The claims administrator is designated as Simpluris Inc. who has submitted a bid for \$6,000 to administer the settlement. The Court approves the claims administrator.

6. Unclaimed Settlement Proceeds

The Court approves the distribution of unclaimed settlement proceeds to the California Secretary of State's Unclaimed Property Division in the name of the Aggrieved Employee, in accordance with Code of Civil Procedure section 384.

7. Release

The Court finds the proposed limited release of PAGA claims reasonable and within the law under a PAGA only settlement as to the aggrieved employees. (Arias v. Sup. Ct., (2009) 46 CA4th 969, 986-987.) Further, the Court notes that the "Plaintiffs' Release" term is supported by adequate consideration in the form of the enhancement payments, which the Court has approved above as \$5,000 each.

8. LWDA Notice

The Court finds confirmation from the LWDA of receipt of proof of submission of the proposed settlement agreement. (Lab. Code, § 2699, subd. (l)(2).) (Declaration of Serb – Ex. 5.)

The Court, therefore, grants the motion and sets a final compliance hearing as to distribution of the net settlement fund to the LWDA and Aggrieved Employees on March 18, 2027; D1; 8:30 am.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.